



MR1

Apply for a determination of an open market rent

This form is for tenants who want to challenge a rent increase and ask the tribunal to decide the open market rent. It is also the form for tenants who want to challenge the initial rent that they agreed for the tenancy. A challenge to an initial rent can only be made within the first six months of a tenancy.

If you have been served with a Form 4 or Form 4A, you must send this form to the tribunal **before** the proposed start date of the new rent as shown in the notice of increase (section 13(4) and section 14 (A3) applications only).

You must complete all sections and provide all requested documents. If you do not, the tribunal cannot progress your application.

If you cannot provide everything requested, explain why. The tribunal will decide whether the application can proceed.

Before you apply

You will need:

- a copy of any tenancy agreement (if any)
- a copy of the landlord's notice of increase for section 13(4) and section 14 (A3) applications. **This must be attached to your application form.**

Application fee

This application fee is **£47**.

You do not have to pay the fee if:

- the landlord served you the notice of increase before 1 May 2026
- you live in social housing

You may be able to get help with paying some or all of the fee, if you have little or no savings. See Section 16.

Apply online

You can also apply online. Search 'Market rent determination' on GOV.UK

If you have any questions

If you have any questions about this application you can call the tribunal on 0300 303 5857.

The tribunal cannot give legal advice on your case.

Serving the application

You must send a copy of the application to the landlord and any interested party by email or post.

Other notes

Write clearly if you are completing this form by hand.

Use another sheet of paper if there is not enough space for you to say everything.

Add your name at the top of any additional pages.

You can find guidance on the application process at:

www.gov.uk/guidance/apply-for-a-market-rent-determination

Section 1 – Type of appeal

1.1 What type of appeal are you making?

Choose **one** of the options:

- ☒ I am challenging the proposed rent increase in the section 13 notice. Including if you also want to challenge the legal validity of the notice. **Go to question 1.2.**
- ☐ I am challenging an excessive rent within the first 6 months of my tenancy. **Go to question 1.4.**
- ☐ I am challenging the legal validity of the landlord's notice of increase only (fee payable). **Go to Section 2.**

1.2 What type of tenancy are you applying about?

- ☒ Assured tenancy, including assured shorthold tenancy. If you were served Form 4 or Form 4A.
- ☐ Agricultural occupancy. If you were served Form 5 or Form 5A.

1.3 When was the notice of increase served?

- ☐ Before 1 May 2026. No fee payable. **Go to Section 2.**
- ☐ On or after 1 May 2026

1.4 Is the tenancy social housing?

- ☐ Yes. No fee payable. (Section 13(4)) or (Section 22)
- ☐ No. Fee payable - see Section 16 (Section 14(A3)) or (Section 14(A1))

Form 4 Landlord's Notice proposing a new rent under an Assured Periodic Tenancy of premises situated in England

Form 4A Landlord's notice proposing a new rent for assured tenancies in the private rented sector

Form 5 Landlord's or Licensor's Notice proposing a new rent or licence fee under an Assured Agricultural Occupancy of premises situated in England

Form 5A Landlord's or Licensor's notice proposing a new rent or licence fee under an assured agricultural occupancy in the private rented sector

Section 2 – Tenant’s information

2.1 Details of tenant

First name

Last name

Company name (optional)

2.2 Applicant type (capacity)

☐ Tenant

☐ Joint tenants

2.3 Address

First line of address

Second line of address

Town or city

County (optional)

Postcode

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2.4 Reference number for correspondence (optional)

2.5 Contact details

Phone number

Mobile number

Email address

Note for Section 2: Use a separate sheet if you need to include details of more than one applicant.

Note 2.2: You can add the other joint tenants on your tenancy agreement to your application. You must have their permission.

2.6 Details of tenant's representative (if any)

First name

Last name

Company name

2.7 Address

First line of address

Second line of address

Town or city

County (optional)

Postcode

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2.8 DX number for correspondence (optional)

2.9 Reference number for correspondence (optional)

2.10 Contact details

Phone number

Mobile number

Email address

Note 2.6: A representative is someone you want to represent you in dealing with the tribunal.

If you appoint a representative, the tribunal office will only correspond with your representative.

If you are completing this as a representative, then you must send with the application confirmation from the tenant that you are instructed to act on their behalf.

Section 3 – Landlord’s information

3.1 Name of landlord

First name

Last name

3.2 Address

First line of address

Second line of address

Town or city

County (optional)

Postcode

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3.3 Reference number for correspondence (optional)

3.4 Contact details

Phone number

Mobile number

Email address

3.5 Details of landlord’s representative or letting agent (if any)

First name

Last name

Company name

3.6 Address

First line of address

Second line of address

Town or city

County (optional)

Postcode

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3.7 Reference number for correspondence (optional)

3.8 Contact details

Phone number

Mobile number

Email address

Section 4 – Notices (section 13(4) and section 14 (A3) applications only)

The landlord has served you with a notice of increase and the new rent has not yet started.

4.1 Have you attached a complete copy of the landlord's **Notice of Increase?**

☐ Yes

☐ No

4.2 Do you agree that the notice served is valid?

☐ Yes

☐ No. **Give further details in the boxes below.**

Reasons why you do not accept that the notice served is valid

Evidence in support which is attached – list below

4.3 Has the tribunal previously determined the rent for your tenancy?

☐ Yes. **The tribunal's case reference number for the previous determination was**

☐ No

Section 5 – Details of your tenancy

5.1 What is your current rent?

Amount

£

Frequency (per week, per month)

5.2 Does the rent include Council Tax?

☐ No

☐ Yes, **give details**

Amount

£

Frequency (per week, per month)

5.3 Does the rent include any charges for utilities?

☐ No

☐ Yes, **give details**

Amount

£

Frequency (per week, per month)

5.4 When did the present tenancy begin?

5.5 Do you have a copy of your tenancy agreement?

☐ Yes. **Attach a complete copy to this form, including all terms and conditions.**

☐ No. **In the box below explain why you do not have a copy of your tenancy agreement.**

For section 22 and section 14(A1) applications only

5.6 When does the tenancy end (section 22 applications only)?

5.7 Does the present tenancy replace an original tenancy?

☐ No

☐ Yes. **Give details below.**

5.8 When did the original tenancy begin?

Section 6 – Details of premises

6.1 What type of accommodation do you rent?

☐ Room(s). **Go to question 6.2.**

☐ Flat. **Go to question 6.2.**

☐ Terraced house. **Go to question 6.3.**

☐ Semi-detached house. **Go to question 6.3.**

☐ Fully detached house. **Go to question 6.3.**

☐ Other

6.2 If it is a flat or room(s) what floor(s) is it on?

☐ Basement

☐ Ground

☐ First floor

☐ Second floor

☐ Other

6.3 Give the number and type of rooms, for example, one living room, two bedrooms, one bathroom

6.4 Does the tenancy include any other facilities for example a garden, garage or separate buildings or land?

☐ No

☐ Yes. **Give details below.**

6.5 Do you share the accommodation with your landlord or other tenants?

☐ No

☐ Yes. **Give details below.**

6.6 Attach a photograph showing the exterior of the property

☐ External photograph of property attached

6.7 Give approximate size/dimensions of each room

	Room dimensions	Photo attached
Room 1		☐
Room 2		☐
Room 3		☐
Room 4		☐
Room 5		☐
Room 6		☐
Room 7		☐
Room 8		☐
Room 9		☐

Note 6.6 and 6.7: Attach a photograph of the exterior of the property and one photograph of each room, make sure no personal information is visible as these will be shared with your landlord, their representative or letting agent (if any) and the tribunal.

Section 7 – Furniture

7.1 Is any furniture provided to you under the tenancy?

☐ No

☐ Yes. **Give details below.**

Section 8 – Services

8.1 Are any services provided under the tenancy for example, cleaning or gardening?

☐ No

☐ Yes. **Give details below.**

8.2 Are you charged separately for services, maintenance, repairs, management costs or any other charges?

☐ No

☐ Yes. **Give details below.**

Charge type

Amount

£

Frequency (per week, per month)

8.3 Do the charges you pay for the services in **question 8.2** vary?

☐ No

☐ Yes. **Give details below.**

Section 9 – The property’s indoor features

Tell us about the property’s features, such as:

- what type of heating it has
- whether it has double glazing
- what type of flooring it has (for example, carpet, tiles or wood flooring)

9.1 Describe the property’s indoor features



Section 10 – Improvements

10.1 Have you or any former tenant(s) carried out improvement work or replaced any fixtures, fittings or furniture for which you or they were not responsible under the terms of the tenancy?

☐ No

☐ Yes. **Give details below.**



Section 11 – Repairs

11.1 What repairs are the responsibility of the landlord?

11.2 What repairs are the responsibility of the tenant?

Section 12 – Open market rent

12.1 What do you think the open market rent should be?

12.2 Do you have any evidence in support of your proposed open market rent?

☐ Yes, I **have set out my supporting evidence in the box below.**

☐ Yes. I **have attached supporting evidence.**

☐ No

12.3 Is there any other information you would like the tribunal to take into account in determining the rent?

☐ No

☐ Yes. **Give details below.**

Section 13 – Inspection

The tribunal will usually make its decision based on the documents and evidence provided.

Only ask for an inspection if you think there are reasons/ characteristics of the property that cannot be explained or evidenced in documents and photographs alone.

The tribunal will decide if a property inspection is needed.

13.1 Do you agree to the tribunal making a decision without an inspection?

☐ Yes

☐ No. **Tell us why you think an inspection is needed.**

Section 14 – Hearing

The tribunal will usually make its decision based on the documents and evidence provided.

Only ask for a hearing if you want to attend a tribunal to add to the documents and evidence you have provided.

The tribunal will consider all documents and evidence with or without a hearing.

The tribunal will decide if a hearing is needed.

14.1 Do you agree to the tribunal making a decision without a hearing?

☐ Yes

☐ No. **Tell us why you think a hearing is needed.**

Section 15 – Hardship (Section 13(4) and Section 14(A3) applications only)

15.1 Are you suggesting that a rent increase will cause you hardship?

☐ No

☐ Yes. **Give details and attach any evidence you wish to rely upon.**

Note 15.1: The tribunal usually decides that the new rent is payable from the date in the notice.

However, if you would suffer undue hardship by having to pay the rent from the notice date the tribunal can order a delay to the payment:

- for applications under section 13(4) – up until the date of its decision
- for applications under section 14(A3) – up to two months after the date of its decision

Section 16 – Application fee

You do not have to pay the fee if:

- the landlord served you the notice of increase before 1 May 2026
- you live in social housing

What you need to pay

The application fee is

£47

How to pay the fee

- ☐
- I have not included payment because

- ☐ I have applied for Help with Fees online and my reference number is

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- ☐ I am applying for Help with Fees, see attached form **EX160**

- ☐
- Other – please explain why

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- ☐
- A debit or credit card payment**

- ☐ email me details on how to pay, my email address is

- ☐ I attached a **cheque or postal order**, made payable to 'HMCTS'

- ☐
- Fee account details – for use by legal professionals**

Your account number

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Your reference (if applicable)

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If you cannot afford the application fee

You may not have to pay a fee, or you may get some money off it if you only have a small amount of savings and investments, receive certain benefits or are on a low income.

You can apply for help with court and tribunal fees online at www.gov.uk/help-with-court-fees or through the 'EX160 Apply for help with fees' form and 'EX160A – How to apply for help with fees' guidance.

Fee account – a way for solicitors, local authorities and other regular users to make payments relating to civil and family cases.

16.1 Are you asking the tribunal to make an order requiring the landlord to reimburse you for all (or part) of the application fee paid?

☐ No

☐ Yes. **Tell us why you are asking for a reimbursement.**

Statement of truth

I believe that the facts stated in this form and any continuation pages are true.

Signature

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Date

Day Month Year

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Full name

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Checklist

List of documents that need to be included with the application:

- ☐ a copy of any tenancy agreement (if any)
- ☐ a copy of the landlord's notice of increase (only applicable to section 13(4) and section 14(A3) applications)
- ☐ I have sent a copy of this application and any documents attached to the landlord

You must complete all sections and provide all documentation requested otherwise the tribunal cannot progress your application.

If you are unable to do so you must explain why in the box below.
The tribunal will decide whether or not the application can proceed.

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After you have completed this form

You can email your application and the documents from the checklist to:
marketrents@justice.gov.uk

If you cannot email, you can send the application by post to:

First-tier Tribunal (Property Chamber) Residential Property –
Market Rents
PO Box 10057
Leicester
LE19 9EP

Phone: 0300 303 5857
(Monday to Friday, 9am to 4pm)

You should send a copy of this form and any attachments to the landlord. The landlord will have 28 days to send you and the tribunal their response on a form called **MR2**.

If you receive a response from the landlord, you have 14 days to respond using form **MR2**. The tribunal will send you form **MR3** when they contact you after you submit this **MR1** application. If you want to respond using form **MR3**, you must copy your response to the landlord. The tribunal will then consider all information and contact you with a decision.